

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: Jae Kim FIRM NAME: JHK LAW, APC STREET ADDRESS: 35 N. LAKE AVE. SUITE 710 CITY: PASADENA TELEPHONE NO.: 213-387-0394 EMAIL ADDRESS: jae@ihklawgroup@gmail.com ATTORNEY FOR (name): Charlie D Ponce		STATE BAR NUMBER: 212610 STATE: CA ZIP CODE: 91101 FAX NO.: 888-908-7089	FOR COURT USE ONLY Electronically FILED by Superior Court of California, County of Los Angeles 10/23/2024 4:31 PM David W. Slayton, Executive Officer/Clerk of Court, By J. Riveros, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Los Angeles STREET ADDRESS: 9425 Penfield Avenue MAILING ADDRESS: CITY AND ZIP CODE: Chatsworth, CA 91311 BRANCH NAME:			
PLAINTIFF/PETITIONER: Cavalry PSV 1 LLC as assignee of Capital One N.A. DEFENDANT/RESPONDENT: Charlie D. Ponce			
GENERAL DENIAL		CASE NUMBER: 24CHLC00646	

If you want to file a general denial, you MUST use this form if the amount asked for in the complaint or the value of the property involved is \$1,000 or less.

You MAY use this form for a general denial if

1. The complaint is not verified; *or*
2. The complaint is verified and the case is a limited civil case (the amount in controversy is \$35,000 or less),
 BUT NOT if the complaint involves a claim for more than \$1,000 that has been assigned to a third party for collection.

(See Code of Civil Procedure sections 85–86, 90–100, 431.30, and 431.40.)

1. DEFENDANT (name): Charlie Ponce
 generally denies each and every allegation of plaintiff's complaint.
2. ☒ DEFENDANT states the following FACTS as separate affirmative defenses to plaintiff's complaint (*attach additional pages if necessary*):

Date: October 18, 2024

Jae Kim

(TYPE OR PRINT NAME)



(SIGNATURE OF DEFENDANT OR ATTORNEY)

If you have a claim for damages or other relief against the plaintiff, the law may require you to state your claim in a special pleading called a cross-complaint or you may lose your right to bring the claim. (See Code of Civil Procedure sections 426.10–426.40.)

The original of this *General Denial* must be filed with the clerk of this court with proof that a copy was served on each plaintiff's attorney and on each plaintiff not represented by an attorney. There are two main ways to serve this *General Denial*: by personal delivery or by mail. It may be served by anyone at least 18 years of age EXCEPT you or any other party to this legal action. Be sure that whoever serves the *General Denial* fills out and signs a proof of service. You may use the applicable Judicial Council form (such as form POS-020, POS-030, or POS-040) for the proof of service.

SHORT TITLE:

Cavalry SPV I LLC v. Ponce

CASE NUMBER:

24CHLC00646

ATTACHMENT (Number): 4

(This Attachment may be used with any Judicial Council form.)

Affirmative Defenses

1. Plaintiff lacks legal standing as it has not attached any evidence that it has been assigned to the rights to the subject debt.
2. No credit card application was signed or executed by Defendant to effectuate any open book account.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

Page _____ of _____

(Add pages as required)

Attachment 4: Affirmative Defenses-Debt Collection Activities

Plaintiff is subject to the Rosenthal Fair Debt Collection Act (Civil Code § 1788 et. seq.) and/or the Fair Debt Collection Practices Act (15 U.S.C. § 1692 et. seq.) and/or the California Business and Professions Code (§ 6077.5 et. seq.). By violating the laws as listed below, it must pay back any out-of-pocket expenses Defendant paid due to the violation(s). If Defendant shows Plaintiff intentionally violated the law, Plaintiff must also pay up to \$1000 for each violation. These sums off-set (reduce or eliminate) Defendant's debt, if any. (§ 1788.30(a.-g.)) Plaintiff, who is the original creditor or a debt collection agency, and/or its attorneys, violated these laws by:

- ☒ Harassing Defendant with repeated phone calls. (15 U.S.C. § 1692d(5); CC §§ 1788.11(d), (e))
- ☐ Continuing efforts to collect, and/or failing to investigate, the alleged debt after receiving the required information from Defendant that he/she was a victim of identity theft. (CC § 1788.18(a-i))
- ☐ Attempting to collect a debt by filing a lawsuit which is too old to be enforceable. (15 U.S.C. § 1692e(2)(A)).
- ☐ Attempting to collect a debt when it knows that service of process was defective. (CC § 1788.15(a))
- ☐ Attempting to collect a debt by using written communication that displays information other than the debt collector's address or business name on the envelope, if the name does not indicate that he is in the debt collection business. (15 U.S.C. § 1692f(8)).
- ☐ Failing to provide a consumer reporting agency with notice that Defendant is disputing information about the debt. (15 U.S.C. § 1681s-2(a)(3))
- ☐ Contacting Defendant before 8:00 A.M. or after 9:00 P.M. or at other times or locations it knew were inconvenient or unusual for Defendant. (15 U.S.C. § 1692c(a)(1); Bus. & Prof. Code § 6077.5(c))
- ☐ Contacting third parties, other than Defendant's spouse/ parent (if Defendant is a minor)/ guardian/ executor/ administrator, about the alleged debt without Defendant's permission, unless allowed by law. (15 U.S.C. §§ 1692c(b); c(d); CC § 1788.12(a-e))